EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

DECISION

Applications nos. 23391/20 and 42745/20
Javad JAVADOV against Azerbaijan
and Elchin SADIGOV against Azerbaijan
(see appended table)

The European Court of Human Rights (First Section), sitting on 7 March 2024 as a Committee composed of:

Péter Paczolay*, President*,
Gilberto Felici,
Raffaele Sabato*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having regard to the formal declarations accepting a friendly settlement of the cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The list of applicants and their representatives is set out in the appended table.

The applicants' complaints under Article 11 of the Convention concerning the prohibition on holding peaceful assemblies or restrictions on the location, time or manner of conduct of public events were communicated to the Azerbaijani Government ("the Government"). The applicants' other complaints based on the same facts were also communicated under Article 13 of the Convention.

The Court received the friendly-settlement declarations, signed by the parties, under which the applicants agreed to waive any further claims against Azerbaijan in respect of the facts giving rise to these applications, subject to an undertaking by the Government to pay them the amounts detailed in the appended table. These amounts will be converted into the currency of the respondent State at the rate applicable on the date of payment, and will be payable within three months from the date of notification of the Court's

decision. In the event of failure to pay these amounts within the above-mentioned three-month period, the Government undertake to pay simple interest on them, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

The payment will constitute the final resolution of the cases.

THE LAW

Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single decision.

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and the Protocols thereto and finds no reasons to justify a continued examination of the applications.

In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications;

Decides to strike the applications out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 28 March 2024.

Viktoriya Maradudina	Péter Paczolay
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Articles 11 and 13 of the Convention (prohibition on holding peaceful assemblies or restrictions on the location, time or manner of conduct of public events and lack of an effective domestic remedy)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Date of receipt of Government's declaration	Date of receipt of Applicant's declaration	Amount awarded for non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
1.	23391/20 19/05/2020	**Javad Yusif oglu JAVADOV** 1976	Elchin Sadigov Baku	25/01/2024	02/11/2023	1,500	250 (to be paid directly to the bank account of the representative Mr Elchin Sadigov)
2.	42745/20 24/08/2020	**Elchin Ali oglu SADIGOV** 1981	Zibeyda Sadigova (Zakaryayeva) Baku	25/01/2024	02/11/2023	1,500	250 (to be paid directly to the bank account of the representative Ms Zibeyda Sadigova)

[1] Plus any tax that may be chargeable to the applicants.
[2] Plus any tax that may be chargeable to the applicants.